

Obj. No. 8 – **Sustained in part** as to "this constituted custodial neglect" as an ultimate conclusion of law. (*Towns, supra*, 147 Cal. App. 4th at 472.)

21. 9:00 AM CASE NUMBER: N24-2030
CASE NAME: MHF HOLDING VIER GMBH & CO. KG VS. KAILA MWALE
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: MWALE, KAILA
TENTATIVE RULING:

Larissa A. Branes and LS Carlson Law, PC (“Counsel”) filed two separate motions to be relieved as counsel on November 25, 2025 (the “Motions to be Relieved as Counsel”). The Motions to be Relieved as Counsel were set for hearing on April 13, 2026.

Background

Counsel seeks to be relieved as attorneys for defendants Kaila Mwale and Julius Mwale (“Defendant”).

The supporting declarations filed by Counsel indicates that there has been a breakdown in the attorney-client relationship due to “irreconcilable differences.” See Declarations filed November 25, 2025, ¶2. Defendants have been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court shall issue the order after hearing.

22. 9:00 AM CASE NUMBER: N24-2030
CASE NAME: MHF HOLDING VIER GMBH & CO. KG VS. KAILA MWALE
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: MWALE, JULIUS
TENTATIVE RULING:

See LINE 21 above.

23. 9:00 AM CASE NUMBER: N25-2006
CASE NAME: CRYSTAL MASSAGE HEALTH CENTER, INC. VS. CITY OF BRENTWOOD
HEARING ON DEMURRER TO: WRIT PETITION
FILED BY: CITY OF BRENTWOOD
TENTATIVE RULING:

Before the Court is City of Brentwood and Amanda McVey's (collectively "Respondents") demurrer to Crystal Massage Health Center, Inc., and Andy Huang's (collectively "Petitioners") Petition for a Writ of Mandate under California Code of Civil Procedure sections 1094.5 and 1085, and Complaint for Declaratory and Injunctive Relief.

Respondents demurrer, pursuant to Code of Civil Procedure sections 430.10(a) and 430.10(e), on the grounds that (1) the petition and each cause of action therein fails to state facts sufficient to constitute a cause of action because Petitioners failed to exhaust administrative remedies under Brentwood Municipal Code sections 5.70.070(B)(1) and 5.70.080 and (2) the writ petition is untimely under Code of Civil Procedure section 1094.6. (Demurrer filed to writ petition "Dem." at 2:10-15.) Respondents further contend that Ms. McVey is not a proper party to this action as she is entitled to statutory immunity under Government Code sections 820.2 and 821.6. (*Id.* at 2:15-17.)

Petitioners oppose the Demurrer; they request that the Court excuse the late filing of the Appeal under principles of equitable tolling and estoppel in order to prevent an unfair technical bar to Petitioner's requested relief.

For the following reasons, the demurrer to the first cause of action for a Writ of Mandate under Code of Civil Procedure section 1094.5, third cause of action for Declaratory Relief, and fourth cause of action for Injunctive Relief is **SUSTAINED WITH LEAVE TO AMEND**; the demurrer to the second cause of action for Traditional Mandamus under Code of Civil Procedure section 1085, and the demurrer as to Ms. McVey is **SUSTAINED WITHOUT LEAVE TO AMEND**.

Request for Judicial Notice

Respondents request judicial notice of Brentwood Municipal Code sections 5.70.070 and 5.70.080. Municipal ordinances are subject to judicial notice under Evidence Code section 452(b). The unopposed request for judicial notice is **GRANTED**.

I. Background and Procedural History

This case arises out of the City of Brentwood's ("the City") revocation of Petitioners Andy Huang ("Mr. Huang") and Crystal Massage Health Center's (CMHC) massage therapy permit and the subsequent appeal process. (Initial Petition Filed "Pet." at 1:20-25, Exhibit 1.)

The revocation was communicated to Petitioners by way of a letter delivered to CMHC. The letter, signed by the chief of the Brentwood Police Department, Timothy Herbert, described "a number of administrative violations" as well as an investigation into whether "lewd acts were being offered without suggestion from clients." (Pet. at Exhibit 1.) It concluded that "[b]ased on our inspection and

investigation, our determination is that we are moving forward with revoking your massage therapy permit for the City of Brentwood.” (*Ibid.*)

The letter further noted that Mr. Huang could appeal the decision under Brentwood Municipal Code section 5.70.080 by “providing written notice of appeal along with a brief description of the reason for the appeal to the City Clerk...” but intent to appeal must be provided to the City Clerk “within ten calendar days after receipt of this notice.” (Pet. at Exhibit 1.) In the absence of a timely written request for appeal, “the right to appeal is deemed waived and the decision...will become final.” (*Id.*)

Though dated Thursday May 22, 2025, the document was never handed to Mr. Huang and was instead left on a desk at CMHC on Friday May 23, 2025. (Pet. at 5:1-2, Huang Declaration (“Huang Dec.”) ¶ 2, Exhibit 1.). In the days that immediately followed his discovery of the letter, Mr. Huang attempted to retain counsel by searching for attorneys online and via the Contra Costa County Bar Association database, and by contacting law firms to find out whether they had experience handling Brentwood Municipal Code appeals. (*Id.* at 5:8-11.) Monday May 26, 2025, was Memorial Day, and the City’s offices and most lawyer’s offices were closed. (*Id.* at 5:3-5.)

Petitioners, through counsel, filed an appeal denying claims of lewd conduct, documenting compliance efforts, and requesting reconsideration with the City Clerk on June 3, 2025, at 3:22 p.m., one day after the City’s ten-day deadline had passed. (Pet. at 5:23-28.) After initially listing the appeal as “under review,” the City ultimately declared it “untimely” on June 26, 2025, and closed the file. (*Id.* at 6:1-2.) The following day, Petitioners submitted a “formal Request for Reconsideration” to the City, “citing minimal delay, lack of notice on office hours or filing cutoffs, disproportionate punishment, and due process violations.” Petitioners allege that Respondents subsequently “failed to act.” (*Id.*, Exhibit 4 at 1.)

CMHC has since been closed “causing a complete loss of income and customer base, layoffs of staff, reputational harm and potential permanent closure absent judicial intervention.” (Pet. at 6:7-9.) Petitioners filed the instant petition October 2, 2025.

II. Meet-and-Confer Efforts

Respondents’ counsel emailed counsel for Petitioners on November 12, 2025, inviting counsel to meet and confer to discuss the deficiencies raised in this demurrer. (Hickey Declaration (“Hickey Dec.”) ¶ 3.) Counsel for both parties met telephonically to that end on November 14, 2025, but the parties were unable to come to an agreement on resolution. (*Id.* ¶ 4.) The Court is satisfied that Defendants met their statutory burden under Code of Civil Procedure section 430.41.

III. Legal Standard

“The right of the respondent in a *mandamus* proceeding to test the legal sufficiency of the petition for a writ by demurrer thereto has always been recognized by the courts of this state.” (*Matteson v. Board of Education* (1930) 104 Cal.App. 647, 650.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim.

(*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A demurrer does not test the truth or accuracy of the facts alleged in the complaint; the court assumes the truth of all properly pleaded factual allegations. (*Los Altos Golf & Country Club v. County of Santa Clara* (2008) 165 Cal.App.4th 198, 203.)

Leave to amend is liberally allowed as a matter of fairness, however when it conclusively appears that there is no possibility of alleging facts under which recovery can be obtained, denial of leave to amend is appropriate. (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747; *Eghtesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 412.) “Leave to amend should be denied where the facts are not in dispute and the nature of the claim is clear, but no liability exists under substantive law.” (*Lawrence v. Bank of Am.* (1985) 163 Cal.App.3d 431, 436.)

IV. Analysis

a. First Cause of Action: Administrative Mandamus (Code of Civil Procedure § 1094.5)

i. The City’s Service Did Not Comply with BMC § 5.70.070(B)(1)

Brentwood Municipal Code section 5.70.070 establishes the exclusive procedure for revocation or suspension of massage establishment permits. (Respondents’ Request for Judicial Notice (“RJN”), Exhibit A; Brentwood Municipal Code §§ 5.70.070(B)(1).) The written notice “will be served on the applicant personally or by deposit of the notice in the United States mail by certified mail at the most recent home or business address on file with the police department.” (*Ibid.* (emphasis added).) These are the only two permissible methods of service under the ordinance.

The Petition alleges that although the “Notice of Immediate Suspension” was dated May 22, 2025, it was not handed to Mr. Huang personally, nor was it sent by certified mail, it was instead left on a desk at CMHC on Friday May 23, 2025. (Pet. at 5:1-2, Huang Dec. ¶ 2, Exhibit 1.) On demurrer, the Court accepts these allegations as true. (*Los Altos Golf & Country Club, supra*, 165 Cal.App.4th at 203.)

Leaving a document on a desk is neither personal service nor certified mail. The City’s method of delivery does not satisfy either of the service methods prescribed by the ordinance. Service of the notice was therefore defective under Brentwood Municipal Code section 5.70.070(B)(1).

i. Because Service Was Defective the June 3rd Appeal Was Timely

Brentwood Municipal Code section 5.70.070(C)(3) provides that following receipt of a notice of immediate suspension, the applicant may file an appeal “within ten calendar days thereafter.” (RJN, Exhibit A at 2.) Here, because the prescribed methods of service were not followed, however, the ten-day appeal period was never validly commenced.

Respondents contend that Petitioners failed to exhaust their administrative remedies by filing their appeal one day late. (Dem. at 8:16-23.) For this contention they rely on Brentwood Municipal Code section 5.70.080(E), which deems failure to appeal a failure to exhaust. (*Ibid.*) This argument presupposes that the ten-day period was validly triggered; it was not. A limitations period cannot begin to run before valid service has been effectuated. The City cannot benefit from a deadline it set in motion through defective service.

Respondents' reliance on *Traverso v. People ex rel. Dept. of Transportation* (1993) 6 Cal.4th 1152, is unavailing; that case addressed the constitutional sufficiency of notice but does not address a municipality's failure to comply with its own service ordinance.

Because compliant service under Brentwood Municipal Code section 5.70.070(B)(1) never occurred, the ten-day deadline to appeal the suspension was never properly triggered and Petitioners' June 3, 2025 appeal fell within the appeal period as a matter of law. Petitioners therefore timely exhausted their administrative remedies and the demurrer on the ground of failure to exhaust is overruled. That conclusion does not resolve the separate question of whether the instant writ petition was itself timely filed. Once the City denied the appeal on June 26, 2025, the limitations period for seeking judicial review ran separately under Code of Civil Procedure section 1094.6.

i. Writ Petition Was Untimely; Equitable Tolling is Not Established on Current Record

Code of Civil Procedure section 1094.6 provides that any petition for writ of mandate challenging a local agency decision "shall be filed no later than the 90th day following the day on which the decision becomes final." (Code Civ. Proc. § 1094.6(b).) Where no provision for reconsideration exists, the decision is final on the day it is announced. (*Ibid.*)

Here, the City transmitted its decision denying Petitioners' appeal on June 26, 2025. Petitioners do not identify, and Respondents' request for judicial notice does not show, any provision in the Brentwood Municipal Code authorizing reconsideration of that denial. (RJN, Exhibit A at 1-3; Brentwood Municipal Code §§ 5.70.070, 5.70.080.) The June 26, 2025 decision therefore constituted the City's final administrative decision for purposes of Code of Civil Procedure 1094.6.

Petitioners "Request for Reconsideration of Denial of Appeal" correspondence (Pet., Exhibit 4.) did not toll the limitations period. Where a municipal code provides no reconsideration mechanism, an informal request does not extend finality under Code of Civil Procedure section 1094.6. The decision remained final on June 26, 2025, regardless of whether Petitioners chose to send an additional letter.

Petitioners invoke *Saint Francis Memorial Hospital v. State Dept. of Public Health* (2020) 9 Cal.5th 710, in support of equitable tolling. *Saint Francis* addressed equitable tolling of the 30-day judicial review deadline under Government Code section 11523 and confirmed the general presumption that statutory deadlines are subject to equitable tolling. (*Saint Francis Memorial Hospital, supra*, 9 Cal.5th at 720.) The Court noted, however, that "equitable tolling is a narrow remedy that applies to toll statutes of limitations only 'occasionally and in special situations.'" (*Id.* at 724.) It requires a showing of three elements: (1) provision of timely notice to the respondents, (2) lack of prejudice to the respondent, and (3) reasonable and good faith conduct on the part of petitioner. (*Ibid.*) The Court did not hold that tolling is available in every case, only that it is not categorically foreclosed.

Respondents contend that equitable tolling is unavailable here because Petitioners did not pursue their claim in two separate forums simultaneously, characterizing the doctrine as limited to situations involving concurrent proceedings in different tribunals. (Respondents' Reply ("Reply") at 3:2-13.) This argument is foreclosed by *Saint Francis* itself. Our Supreme Court expressly rejected the proposition that equitable tolling is categorically limited to the two-forum scenario, explaining that the doctrine

has broader application and that no single factual pattern is required. (*Saint Francis Memorial Hospital, supra*, 9 Cal.5th at 725-726.) The relevant inquiry is whether the three-factor test is satisfied, not whether the case involves simultaneous proceedings in multiple forums. That said, even assuming *arguendo* that under *Saint Francis*, equitable tolling is available in the context of Code of Civil Procedure section 1094.6, Petitioners have not established that they are entitled to it on this record.

Respondents argue that Petitioners cannot meet the second element of *Saint Francis* because Respondents will be prejudiced if Petitioners are permitted to proceed with their writ in that the finality of municipal decisions will be called into question. The Court in *Saint Francis* addressed a similar argument from the respondent in that case and the Court noted that such an argument “ignores the core focus of our prejudice analysis: whether application of equitable tolling would prevent the defendant from defending a claim on the merits.” (*Saint Francis Memorial Hospital, supra*, 9 Cal.5th at 728.) The Court went on to observe that the implications of accepting such an argument would all but compel the court to find prejudice in almost every equitable tolling case. “Virtually all parties, after all, tend to rely on statutes of limitations in the course of litigation.” (*Ibid.*) Furthermore, as the Court in *Saint Francis* observed of the same argument, Respondents’ in their claim of prejudice overlook the fact that “the finality of adjudicative decisions is already undermined by the statute itself which expressly allows decisions to be appealed—appeals which can, and typically do, postpone the finality of the Department’s decisions for years.” (*Ibid.*)

Petitioners adequately allege the first two *Saint Francis* elements at the pleading stage. Their June 27, 2025 request for reconsideration expressly reserved the right to seek judicial review by writ, and Respondents therefore had notice of Petitioners’ intent to continue pursuing the matter. At this stage, Respondents likewise have not shown prejudice of the type relevant to equitable tolling, namely prejudice in defending on the merits.

Petitioners do not, however, allege facts sufficient to satisfy the third element: objectively reasonable and good faith conduct during the limitations period. After expressly reserving litigation rights on June 27, 2025, Petitioners – represented by counsel – took no action to file the writ petition until October 2, 2025, eight days after the 90-day deadline had passed. Petitioners explain the circumstances surrounding the tardiness by one day for the 10-day appeal deadline, yet allege no facts explaining why the writ petition could not have been filed within the 90-day window prescribed by Code of Civil Procedure section 1094.6. To meet *Saint Francis*’ third element “[a] plaintiff’s conduct must be objectively reasonable and subjectively in good faith.” (*Saint Francis Memorial Hospital, supra*, 9 Cal.5th at 729.) Conduct that is diligent enough to notify the City of intent to litigate but then inexplicably dormant for the remainder of the limitations period does not meet the standard of objectively reasonable good-faith conduct that equitable tolling is designed to protect. (*Ibid.*)

Because Petitioners have not established objectively reasonable and good-faith conduct throughout the limitations period, equitable tolling is not available on the current record. The writ petition was not filed within the 90 days prescribed by Code of Civil Procedure 1094.6 and the demurrer is therefore **SUSTAINED**. However, because the petition is silent rather than conclusively negative on the basis of the delay between June 27 and October 2, 2025, **LEAVE TO AMEND IS GRANTED** solely to

allow Petitioners to plead facts, if any exist, sufficient to establish the third *Saint Francis* element.

b. Second Cause of Action: Traditional Mandamus (Code of Civil Procedure §1085)

The second cause of action for Traditional Mandamus fails on two independent grounds.

First, Code of Civil Procedure section 1085 is not the proper vehicle to challenge the City's decision to suspend and revoke Petitioner's massage therapy permit. "The decision to grant or deny a permit is a quasi-judicial function, and a petition for writ of mandate challenging such a decision is governed by the standards of Code of Civil Procedure section 1094.5" (*California Assn. of Sanitation Agencies v. State Water Resources Control Bd.* (2012) 208 Cal.App.4th 1438, 1453; see also *Lanigan v. City of Los Angeles* (2011) 199 Cal.App.4th 1020, 1029.) "When a statutory regime vests exclusive jurisdiction in an agency...a party may only proceed administratively and thereafter may only challenge the results of any administrative outcome through administrative mandamus (Code Civ. Proc., § 1094.5) or such other means as the statutory scheme may specify." (*Villanueva v. Fidelity National Title Co.* (2021) 11 Cal.5th 104, 126, fn. 12.)

Here, because the permit suspension arose from a quasi-judicial process under the Brentwood Municipal Code, Code of Civil Procedure section 1094.5 is the exclusive writ vehicle.

Second, even if Code of Civil Procedure section 1085 were applicable, the relief Petitioners seek is not cognizable under that statute. Petitioners ask this Court to direct the City to accept their appeal and conduct a hearing on the merits. (Pet. at 16:7-8.) That is not the compulsion of a ministerial act, it is an attempt to direct the exercise of discretion in a particular direction, which Code of Civil Procedure section 1085 does not permit. (*People ex rel. Younger v. County of El Dorado* (1971) 5 Cal.3d 480, 490-491; *Daily Journal Corp. v. County of Los Angeles* (2009) 172 Cal.App.4th 1550, 1555.) A writ of mandate may not issue to control a public agency's exercise of discretion, and a court may not compel the exercise of discretion in a specific manner or to reach a specific result.

Accordingly, the demurrer to the second cause of action is **SUSTAINED WITHOUT LEAVE TO AMEND**.

c. Third and Fourth Causes of Action: Declaratory Relief and Injunctive Relief

The third and fourth causes of action for Declaratory Relief and Injunctive Relief, respectively, are entirely derivative of the writ claims. Neither cause of action has an independent basis for relief; both depend on the premise that Petitioners are entitled to a hearing on their administrative appeal. Because the writ petition fails for the reasons stated above, the derivative claims for declaratory and injunctive relief claims fail with it.

The demurrer to the third and fourth causes of action is **SUSTAINED WITH LEAVE TO AMEND** solely on the same basis and subject to the same limitations stated in section (IV)(a) *ante* for the first cause of action.

d. Respondent McVey

Ms. McVey is not a necessary or proper party. Petitioners seek relief against the City and its administrative process. Ms. McVey is sued only in her official capacity as City Clerk, and any writ or injunctive relief directed to her in that capacity would be functionally identical to the relief directed to

the City itself. Her inclusion therefore adds nothing not already encompassed by the City's presence as a respondent.

Independently, Ms. McVey is entitled to statutory immunity under Government Code sections 820.2 and 821.6. Section 820.2 provides that a public employee is not liable for injury resulting from a discretionary act or omission within the scope of employment. (Gov. Code § 820.2.) Section 821.6 provides that a public employee is not liable for injury caused by instituting or prosecuting any judicial or administrative proceeding within the scope of employment, even if the employee acts maliciously or without probable cause. (Gov. Code § 821.6.) The conduct attributed to Ms. McVey – receiving Petitioner's appeal, evaluating its timeliness under the Brentwood Municipal Code, and communicating the City's determination – constitutes both the exercise of discretion within the scope of employment and the prosecution of an administrative proceeding. Both immunity provisions apply.

The demurrer as to Ms. McVey is **SUSTAINED WITHOUT LEAVE TO AMEND** on both grounds. Amendment cannot cure either defect.

V. Conclusion

The City failed to comply with the service requirements of Brentwood Municipal Code section 5.70.070(B)(1), and, as a result, the ten-day appeal period was not properly triggered. The June 3, 2025 appeal was therefore timely and Petitioners exhausted their administrative remedies.

The writ petition itself, however, was not filed within the 90-day period prescribed by Code of Civil Procedure section 1094.6, and equitable tolling is not established on the current record.

For the preceding reasons, the demurrer to the first cause of action for a Writ of Mandate under Code of Civil Procedure section 1094.5, the third cause of action for Declaratory Relief, and the fourth cause of action for Injunctive Relief is **SUSTAINED WITH LEAVE TO AMEND** solely to allow Petitioners to allege facts, if any exist, sufficient to establish objectively reasonable and good-faith conduct during the limitations period under the third element of *Saint Francis Memorial Hospital v. State Dept. of Public Health* (2020) 9 Cal.5th 710. No other amendments are permitted. The demurrer to the second cause of action for Traditional Mandamus under Code of Civil Procedure section 1085, and the demurrer as to Ms. McVey is **SUSTAINED WITHOUT LEAVE TO AMEND**.

24. 9:00 AM CASE NUMBER: N26-0113
CASE NAME: PETITION OF: CA DEPARTMENT OF MOTOR VEHICLES
HEARING IN RE: CERT OF FACTS THAT JUSTIFY CONTEMPT SANCTIONS
FILED BY: CA DEPARTMENT OF MOTOR VEHICLES
TENTATIVE RULING:

The Court received the parties' stipulation to vacate the OSC hearing. However, no proposed form of order was attached. The hearing shall be vacated and the moving party to re-submit a form of order for the Court's approval and entry.